

9.	30-2025-01511451 Foote vs. Durham School Services, L.P.	1. Case Management Conference 2. Motion for Leave to Intervene Western Orange County Self-Funded Workers' Compensation Agency moves for an order granting leave of Court to file a Complaint in Intervention. Unopposed Motion is granted. Civ Code§387(a); Ca Lab Code§3852, 3853. Complaint in Intervention to be separately filed and served. Moving Party to give notice.
11.	30-2024-01371125 Bicknell vs. Hill Commercial Investments, Inc	1. Motion for Terminating Sanctions Defendant Hill Commercial Investments, Inc. ("Defendant") moves for terminating sanctions or, in the alternative for monetary sanctions against Plaintiffs' attorney, Steven Tamer, together with an order compelling full compliance with all prior Court orders. CCP section 2023.030 outlines the various sanctions that may be imposed "against anyone engaging in conduct that is a misuse of the discovery process," including: monetary sanctions, issue sanctions, evidence sanctions, a terminating sanction, and a contempt sanction. These sanctions may be imposed by the court, "after notice to any affected party, person, or attorney, and after opportunity for hearing." (Code Civ. Proc., § 2023.030.) Among other acts, disobeying "a court order to provide discovery" and "failing to respond or to submit to an authorized method of discovery," are misuses of the discovery process and conduct that is subject to sanctions. (Code Civ. Proc. § 2023.010, subd. (d), (g).) "Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery." (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) Many courts have found that terminating sanctions should be imposed only if the court has found a willful failure to comply. (See <i>Valencia v. Mendoza</i> (2024) 103 Cal.App.5th 427, 447; <i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) The trial court has "broad discretion in selecting the appropriate penalty," and its determination should be upheld "absent an abuse of discretion." (<i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 604.) Nevertheless, terminating sanctions "are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party." (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496.) The burden of showing sanctions are not justified (i.e., that the responding party did not willfully fail to perform) lies with the responding party. (See <i>Corns v. Miller</i> (1986) 181 Cal.App.3d 195, 201.) Here, Plaintiffs Darwin Z. Bicknell and Lissa M. Bareno were ordered on April 16, 2026 to appear for depositions, produce all documents described in the deposition notices (unless a privilege applies), and to, jointly and severally with their attorney of record, pay a monetary sanction of \$800 within 30 days to Defendant's counsel. (ROA 273.) On May 14, 2026, Plaintiffs were ordered to serve responses to Form Interrogatories, Special Interrogatories, and Requests for Production, without objections, within 45 days. They were also

		ordered, jointly and severally with their attorney of record, to pay \$1,200 in monetary sanctions to Defendant's counsel within 30 days. As of the hearing date of this motion, it appears that only Plaintiff Lissa M. Bareno has sat for her deposition. Defendant's counsel declares that Ms. Bareno produced documents and responded to Form Interrogatories, but does not address the Special Interrogatories, written responses to Requests for Production or monetary sanctions. (Tamer Decl. ¶¶3-7.) Plaintiffs contend that Mr. Bicknell is not refusing to appear for his deposition, and has offered to appear by video, but that was unacceptable to Defendant. Mr. Bicknell claims to be out of the country, but is willing to appear for his deposition in August. The opposition does not address Mr. Bicknell's responses to written discovery or payment of monetary sanctions. (Tamer Decl. ¶¶ 8-15.) Nor does counsel indicate that counsel has paid either monetary sanction. (See, generally, Tamer Decl.) The Court is troubled by this failure to comply with its previous orders, without sufficient explanation. The Court nonetheless does not find that the drastic remedy of terminating sanctions is justified at this juncture. The Court will instead impose a lesser monetary sanction of \$2,025 (4.5 hrs at \$450/hr) against Plaintiffs' attorney, Steven Tamer. Sanctions are due and payable to Defendant's counsel within 30 days of this order. Additionally, the Court orders Plaintiffs to fully comply with this Court's April 16 and May 14 orders. Should Plaintiffs fail to comply with those orders within 30 days, the Court will consider granting a subsequent defense motion for terminating sanctions. Defendant to give notice.
12.	30-2024-01443133 ESC-TOY LTD. Vs. Maschoff Brennan Gilmore & Israelsen, PLLC	1. Case Management Conference 2. 2 Motions to Compel <u>Motion to Compel Further Responses to Special Interrogatories (ROA #158)</u> <u>Motion to Compel Further Responses to Request for Production (ROA #157)</u> Given the late filed Oppositions and supporting documents, filed 8/10/26, the Court CONTINUES the hearing on these 2 motions to 8/20/26 at 1:30pm in C34. Any reply briefing in response to the opposition documents to be filed by 8/14/26. No additional briefing. Clerk to give notice.
13.	30-2024-01379003 Dib vs. Daher	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Summary Judgment and/or Adjudication There are two motions for summary judgment on calendar: one brought by Defendant Doran Andry ("Defendant Andry") and one brought by Defendant 11WINDS11, LLC ("Defendant 11Winds") Defendant Andry and Defendant 11Winds both move for an order granting summary judgment in their favor on all five causes of action asserted in the First Amended Complaint, which include the: (1) first cause of action for fraudulent transfers in violation of Civil Code section